

3RD SCH.

Session and Chapter	Short Title	Extent of Repeal
7 & 8 Eliz. 2. c. 58.	The Finance Act, 1959 ...	In the Second Schedule, paragraphs 6 and 7.
8 & 9 Eliz. 2. c. 60.	The Betting and Gaming Act, 1960.	In section twenty-six, in subsection (1), the words "and in any condition contained in any certificate granted under the Licensing (Scotland) Act, 1959".

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Industrial and Provident Societies Act, 1893	56 & 57 Vict. c. 39.
Friendly Societies Act, 1896	59 & 60 Vict. c. 25.
Customs and Excise Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 44.
Special Roads Act, 1949	12, 13 & 14 Geo. 6. c. 32.
Licensing (Scotland) Act, 1959	7 & 8 Eliz. 2. c. 51.
Road Traffic Act, 1960	8 & 9 Eliz. 2. c. 16.
Betting and Gaming Act, 1960	8 & 9 Eliz. 2. c. 60.

CHAPTER 52

An Act to increase the penalties for certain offences involving drunkenness or punishable under enactments relating to such offences. [1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The maximum penalty to which a person is liable on any conviction for an offence under the provisions mentioned in this section shall, in the case of offences committed after the commencement of this Act, be increased as follows, that is to say—

Increase of penalties for drunkenness, etc.

- (a) to a fine not exceeding five pounds where the conviction is under any of the provisions specified in paragraph (a) of subsection (2) of this section (which relate to offences of being drunk in public places or licensed premises or refusing to leave or attempting to enter a refreshment house or ship when drunk or disorderly); and

- (b) to a fine not exceeding ten pounds or imprisonment for a term not exceeding one month where the conviction is under any of the provisions specified in paragraph (b) of that subsection (which relate to offences of drunkenness in aggravating circumstances or violent or indecent behaviour at police stations).
- (2) The said provisions are—
- (a) section forty-one of the Refreshment Houses Act, 1860; the first paragraph of section twelve of the Licensing Act, 1872;
- paragraphs (a) and (b) of subsection (1) of section two hundred and eighty-seven of the Merchant Shipping Act, 1894;
- the first paragraph of subsection (1) of section seventy of the Licensing (Scotland) Act, 1903;
- section one hundred and fifty-two of the Licensing (Scotland) Act, 1959; and
- (b) any other provision of the said section twelve or the said section seventy;
- section fifty-eight of the Metropolitan Police Act, 1839;
- section thirty-seven of the City of London Police Act, 1839;
- section twenty-nine of the Town Police Clauses Act, 1847, as incorporated in any other enactment;
- section two of the Licensing Act, 1902;
- sections one hundred and fifty-three and one hundred and fifty-four of the Licensing (Scotland) Act, 1959.

Short title,
commencement
and extent.

2.—(1) This Act may be cited as the Penalties for Drunkenness Act, 1962.

(2) This Act shall come into operation on the expiration of the period of one month beginning with the day on which it is passed.

(3) This Act does not extend to Northern Ireland.

Table of Statutes referred to in this Act.

Short Title	Session and Chapter
Metropolitan Police Act, 1839	2 & 3 Vict. c. 47.
City of London Police Act, 1839	2 & 3 Vict. c. xciv.
Town Police Clauses Act, 1847	10 & 11 Vict. c. 89.
Refreshment Houses Act, 1860	23 & 24 Vict. c. 27.
Licensing Act, 1872	35 & 36 Vict. c. 94.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Licensing Act, 1902	2 Edw. 7. c. 28.
Licensing (Scotland) Act, 1903	3 Edw. 7. c. 25.
Licensing (Scotland) Act, 1959	7 & 8 Eliz. 2. c. 51.